



File No.: EXP202303214

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) on February 24, 2023, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against AYUNTAMIENTO DE RABANERA DEL PINAR with NIF P0931200J (hereinafter, AYTO.). The reasons on which the complaint is based are as follows:

The claimant states that the AYTO., through a Decree from the Mayor that has not been approved by the municipal plenary, has installed a video surveillance camera at the outer vertex of the municipal fronton in the access square to the municipality, oriented towards the public road, with its images being broadcast in real-time via YOUTUBE.

No document is provided along with the notification, but there is an indication that access is made from the YouTube platform by typing "Rabanera del Pinar" in its search bar.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the AYTO., so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on March 21, 2023, as stated in the certificate included in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on March 29, 2023. In this notification, the obligation to communicate electronically with the Administration was reminded, and the means of access to such notifications were provided, reiterating that, henceforth, notifications would be made exclusively by electronic means.

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On May 8, 2023, a response was received at this Agency indicating:

“First.- It is not a video surveillance system but a camera for meteorological purposes that broadcasts live without recording on that device.

The technical specifications of the installed equipment are attached.

Second.- The images offered live are accessed through the municipality's own website, which provides a panoramic view of the municipality, as well as meteorological information. The link to it is attached:

***URL.1

Third.- The company that installed the said equipment, once its request was sent, informs:

Firstly, it is important to inform that it is not a video surveillance system; it is a single camera for streaming that displays the temperature of the town and allows observing the weather conditions. There is no possibility of using this system for video surveillance; it does not have a connected recorder or internal storage card.

License plates and faces cannot be distinguished.

It broadcasts thanks to the license acquired Camstreamer; for temperature, the license is CamOverlay (...) info@duartec.es

A single camera with no recording capability. We understand that it is not a monitored area; it is a camera for people to see the landscape. It does not record.

This Town Hall is willing to comply with any suggestions or corrections necessary to avoid any type of infringement that may occur.”

On May 8, 2023, the AEPD sent a new letter to the AYTO. indicating:

“In relation to the letter sent in response to the information request made by this Agency, we inform you that there are certain aspects that need clarification.

For this reason, within five working days from the notification of this request, you must complement the documentation initially submitted by providing the following information: -

Once the documentation provided in the file has been analyzed, it is noted that the field of vision of the camera, which is the subject of the complaint, may not comply with data protection regulations, as it captures nearby spaces such as buildings and public roads that do not correspond with the panoramic nature of the camera; therefore, it is requested that you provide images of its field of vision again, within the period established in this letter.”

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On May 16, 2023, the AYTO responded by providing an image that had not changed from the initial one. When requested again, on the same date, the AYTO's response remained identical.

THIRD: On May 24, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On July 21, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), on July 26, 2023, through the service of the Single Enabled Electronic Address. The respondent submitted a written statement of allegations in which, in summary, it stated that

“In the exposition of the facts on which the initiation resolution is based, information contained in the requests from the Spanish Agency for Data Protection (hereinafter AEPD) is overlooked. Both texts are produced to see the difference.

The request is crystal clear: ‘provide new images of your field of vision, within the timeframe established in this document.’ If we consider the plain meaning of the words, what was requested of us is a new capture, but the same capture of the image. However, in the following request dated May 16, 2023, the text ‘once rectified’ is added.

This AYTO did change the camera angle, albeit not significantly, but the request received was sufficiently brief to be confusing and led this AYTO to error. If this AYTO had received a clear order to change the location, it would have done so.

Moreover, it would have been easy for us, once the request was received, to change the camera shot to the sky and deny the greater claim, but our intention was to place a camera in compliance with the law, not simply to place a camera.

In light of these allegations and graphic evidence, the account of the facts contained in the last paragraph of the second fact of the initiation agreement of the sanctioning procedure is completely contrary to reality, thus starting from an erroneous premise in the foundation of the sanctioning procedure.

Second.- Unattended request for instructions. From the first request, this AYTO showed its willingness to carry out any type of action.”

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of modification that may be necessary, the text regarding the first requirement is extracted:

“Fourth.- This City Council is willing to comply with any type of suggestion or correction that is necessary to avoid any type of infringement that may be committed.”

Only the confusing text that has been reproduced in the previous allegation was received. From its terse wording, it can even be inferred that these are the instructions we must follow: change the camera angle and send a capture again to see that you have done so. This is a more than plausible interpretation given the confusing wording of the same.

Now, in light of the Agreement to initiate the file, where the facts are deemed serious, there is an inconsistency in the treatment by the AEPD. If the facts are as serious as they are classified in the Agreement to initiate, the first thing that should be done is to suspend the camera's emission as a precautionary measure to avoid incurring in a continued type of infringement. Moreover, if the facts are so serious, the City Council should have been required to suspend the emission precautionarily from the first complaint.

However, neither in the requirements nor in the Agreement to initiate is there any reference to the suspension of the emission, from which it can be inferred that it does not harm the right that is intended to be protected when nothing is mentioned regarding the suspension, even if it is precautionary while the procedure is being processed.

Furthermore, since there is no mention in this regard, the AEPD is allowing the City Council to commit the infringement. Therefore, no infringement can be attributed to the City Council since it received the first requirement in March because no precaution is mentioned, and the City Council showed itself willing to make the necessary modifications. This places the City Council in a state of legal defenselessness.

Another interpretation is that from the very moment of the Agreement to initiate, the irrelevance of the facts is already clear, because despite their legal qualification, no damage that needs to be cut off at the root is perceived.

Third.- Identified and identifiable. “(...) all information about an identified or identifiable natural person: a natural person is considered identifiable if their identity can be determined directly or indirectly (...). The text is an extract from the norm on which the Agreement to initiate is based. Identified, identifiable, directly or indirectly. These four words and their interpretation are the crux of the matter.

Identified, who and by whom. We have seen in the previous allegations that no person appears in the image captures. This is because Rabanera del Pinar is within the so famous rural depopulation that you have surely heard about. With barely forty residents in winter, it is difficult to locate anyone on screen. But, do we know who it is?

Currently, there are about one hundred registered residents; we can raise this figure to eight hundred people when including children of the village and regular visitors. Eight hundred.

people could identify anyone who passes in front of the camera, as long as those eight hundred people are glued to the screen since they are free from any obligation and need to monitor passersby.

The world population is 7.888 billion people. Therefore, the percentage of people who can identify anyone appearing on screen is negligible; we cannot even calculate it with the resources available to the City Council.

Identifiable, directly or indirectly. Sure, we cannot identify the person appearing on screen here and now, but according to the legal text, we could identify them. Of course, we could identify anyone, directly or indirectly; it is a matter of time and resources.

In a capture of the Plaza de Callao, more people can be seen than in that of Rabanera del Pinar. Can

we identify the people appearing in the image? No. They are identifiable, meaning we could identify them by direct or indirect means. Yes. It is merely a question of employing the necessary time and resources.

Has a sanctioning procedure already been opened against all panoramic websites in Spain? We are all identifiable and locatable with current technical means.

The improper interpretation of the regulation by which it is intended to sanction the City Council of Rabanera del Pinar could lead to both absurd situations and an avalanche of disgruntled complaints, which is why this City Council requests that the aforementioned sanctioning file be archived.

In the event that the procedure continues, we formally request the practice of evidence.

SIXTH: On 04/10/23, a is issued in which it is proposed that the Director of this agency declare the infringement of Article 6 of the GDPR, considering that the installed system had no legal backing in the legitimizing bases of the processing.

From the actions taken in the present procedure and the documentation in the file, the following has been accredited:

PROVEN FACTS

First. It is accredited that the main responsible for the installation of the device is the City Council of Rabanera del Pinar, with NIF P0931200J, who does not deny responsibility for the installation of the device.

Second. It is accredited that the aforementioned entity has installed a camera for meteorological purposes, which broadcasts a live image of the town from a considerable distance, capturing a panoramic view of the town and the state of the sky.

Third. It is accredited that the images are accessed from a webpage enabled for this purpose on the City Council's own website: ***URL.1.

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Fourth. It is not established that it stores data associated with an identified or identifiable natural person.

Fifth. It has been confirmed that the device in question initially affected, albeit partially, the road area and the houses located in the front line of the device's panorama, without any evidence of affecting an identified or identifiable natural person and, therefore, the processing of their data.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection, therefore, is subject to this Regulation. In Article 4.2 of the GDPR, the concept of "processing" of personal data is defined.

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online

identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment, combination, restriction, erasure, or destruction;"

Therefore, based on the definition transcribed above, even if the recording of images does not occur, the real-time reproduction, as it could be...

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Collecting the same could imply data processing, and therefore, the subjection of such processing to the regulations established in the GDPR.

It is, therefore, pertinent to analyze whether the processing of personal data carried out through the observation camera installed by the AYTO. is in accordance with the provisions of the GDPR.

III

Article 77 of the LOPDGDD (LO 3/2018, December 5) provides:

1. The regime established in this article shall apply to the processing for which the following are responsible or in charge:

a) The constitutional bodies or those with constitutional relevance and the institutions of the autonomous communities analogous to them.

b) The judicial bodies.

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

d) The public bodies and entities of public law linked to or dependent on the Public Administrations.

e) The independent administrative authorities.

f) The Bank of Spain.

g) The public law corporations when the purposes of the processing relate to the exercise of public law powers.

h) The public sector foundations.

i) The Public Universities.

j) The consortiums.

k) The parliamentary groups of the General Courts and the autonomous Legislative Assemblies, as well as the political groups of the Local Corporations.

2. When the responsible parties or those in charge listed in section 1 commit any of the infractions referred to in articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infraction and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infraction that has been committed, with the exception of that provided for in article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the responsible party or the person in charge of the processing, to the body to which it is hierarchically dependent, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to the provisions of the previous section, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the penalties to be applied shall be those established in the legislation on disciplinary or sanctioning regimes that are applicable.

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Likewise, when the infractions are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for the processing that have not been duly attended to, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order the publication in the Official State Gazette or the corresponding autonomous gazette.

4. The resolutions relating to the measures and actions referred to in the previous sections shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it shall publish on its website, with due separation, the resolutions referred to the entities in section 1 of this article, with an express indication of the identity of the responsible party or the person in charge of the processing who has committed the infraction. When the competence corresponds to an autonomous data protection authority, the publicity of these resolutions shall be governed by its specific regulations (* the bold text belongs to this agency).

IV

Before addressing the substance of the matter, it is necessary to clarify that one thing is the installation of video surveillance cameras for security reasons and to protect the integrity of individuals against potential uncivil or criminal acts, which are subject to the necessary authorization and compliance with the current data protection regulations; and another thing is the installation of a device(s) for real-time viewing of the town's panorama for meteorological purposes.

The facts are specified in the presence of a device for real-time broadcasting of a panorama of the town, which could affect the rights of third parties if misaligned.

Article 22, section 1 of the LOPDGDD (LO 3/2018, December 5) provides the following:

“Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of individuals and property, as well as their facilities.”

Recently, there has been an increasing use of new technologies by Town Halls for purposes different from the initial nature of video surveillance cameras, which is none other than the protection of safety (for example, monitoring beach capacity, panoramic views of emblematic neighborhoods in cities, traffic control, or providing weather updates, etc.).

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Article 1, paragraph 1 of the GDPR states the following:

"This Regulation applies to the total or partial automated processing of personal data, as well as to the non-automated processing of personal data contained in or intended to be included in a filing system" (*the bold text belongs to this agency).

The purpose of the so-called meteorological cameras (Webcams) is solely to inform about the weather conditions or occasionally to provide an overview of the state of the main accesses to cities, without processing data associated with identified or identifiable natural persons.

To comply with current legislation, it will be sufficient that they do not disclose personal data of natural persons in their broadcasts or affect the privacy of nearby homes (for example, affecting the interior or windows of the same).

Regarding the legitimizing basis, in the case of installations affecting public areas (streets, squares, etc.), they must comply with the provisions of Law 4/1997, of August 4, which regulates the use of video cameras by the Security Forces and Corps in public places, in such a way that authorization from the Government Delegate would be required at the request of the Mayor or the competent Security Councilor, although this is not the case as it is a camera with meteorological purposes.

The important aspect in this case is to analyze whether the device in question can identify a natural

person. If the images are captured with a resolution that allows for the identification of a person, that person would be identifiable and would fall within the scope of the law; otherwise, they would not. Analyzing the initial images provided by the respondent, in accordance with what was stated in the complaint, the device is installed at a height of 7 meters, making it impossible to identify any natural person, who would appear as mere dots.

The majority of the image captured with the device's wide-angle lens is of the sky of the locality, in line with the stated purpose of the system, which is to provide a service of public interest regarding the weather conditions in the locality.

Additionally, measures have been taken to preserve the privacy of the nearby area during the processing of the procedure, pixelating part of the device's lens to further ensure its main function, which is to provide an overview of the town.

Finally, it has not been possible to determine that any natural person's rights have been affected, as no objective evidence has been provided with the complaint, nor has it been possible to specify such an aspect during the investigation phase.

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According to the above, having analyzed the allegations and evidence provided, it can be concluded that the respondent has proceeded to install a device that broadcasts live the panorama of the town, for meteorological purposes, which during the instruction of this procedure has adjusted its viewing angle, existing a considerable distance that prevents the clarity of data associated with natural persons or the invasive nature regarding the privacy of nearby properties.

Given that during the processing of the procedure it has adopted the necessary measures to ensure that the device in question is less invasive of nearby properties, there is no need to require the adoption of any measures, considering the total cooperation with this agency throughout the processing of the same.

The remaining issues do not fall within the jurisdiction of this agency, corresponding to the contentious-administrative jurisdiction to review the administrative acts adopted by the Mayor of the locality and their compliance with current legislation.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the FILING of this procedure.

SECOND: TO NOTIFY this resolution to the entity AYUNTAMIENTO DE RABANERA DEL PINAR.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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